

**IN THE DISTRICT COURT OF APPEAL
FIRST DISTRICT, STATE OF FLORIDA**

CASE NO.: 1D2025-1127

Lower Tribunal Case No.: 2018-CA-000543

MARC M. MOSZKOWSKI,

Petitioner,

v.

DEEPGULF, INC. and TOKE OIL AND GAS, S.A.,

Respondents.

**EMERGENCY MOTION TO STAY EXECUTION OF LOWER COURT
ORDERS PENDING RESOLUTION OF JUDICIAL DISQUALIFICATION
APPEAL**

COMES NOW Petitioner, Marc Moszkowski, and respectfully moves this Court for an emergency order staying enforcement of pending trial court orders, specifically mediation, pre-trial, and trial proceedings, pending this Court's resolution of Petitioner's appeal for judicial disqualification of the trial judge.

In support, Petitioner states:

1. Procedural Background

- On or about May 12, 2025, Petitioner filed a Petition seeking disqualification of the trial judge in the above-captioned matter.
- That Petition was duly docketed by this Honorable Court, the required filing fee was paid, and a case number was issued the same day.
- The underlying appeal concerns serious issues of judicial bias and procedural fairness that, if upheld, would directly invalidate any rulings or proceedings conducted by the trial court.

2. No New Orders Issued by Trial Court

- Since the docketing of the appeal, the trial court has issued no new orders.
- However, several preexisting orders remain in effect and are actively proceeding toward enforcement, namely:
 - The requirement to participate in remote mediation on May 21, 2025 (with a \$900 fee).
 - An in-person Pre-Trial Conference is scheduled for June 10, 2025, and a two-day in-person trial is set for June 17 and 18, 2025.

- Although no new orders have been issued by the lower court since the filing of this appeal, the existing trial court order states that if Petitioner fails to participate in mediation on May 21, 2025, he must appear in person on June 10, 2025, to show cause why he should not be held in contempt. This contempt hearing is set before the same judge whose disqualification is under appellate review.

3. Irreparable Harm if Relief Is Denied

- Petitioner is financially unable to pay the \$900 mediation fee and has previously documented his indigency.
- Petitioner also suffers from documented medical and logistical constraints that make in-person trial attendance impossible.
- Forcing Petitioner to comply with these orders during the pendency of an appeal for judicial disqualification creates a risk of irreversible prejudice, violates the presumption of appellate jurisdiction, and undermines judicial integrity.
- If forced to proceed, Petitioner faces not only logistical impossibility but a violation of the integrity of appellate review itself, as further proceedings may be void if the disqualification is granted.

- The threat of being held in contempt by a judge whose impartiality is the very subject of this appeal creates an unacceptable risk of further procedural and reputational harm, and defeats the purpose of appellate review. Compliance would either be physically impossible or would require Petitioner to waive the very relief he is seeking.

4. Relief Requested

Petitioner respectfully requests that this Honorable Court:

- Issue a stay of the lower court proceedings, including enforcement of mediation, pre-trial, and trial orders, until this Court has ruled on the pending appeal;
- Or, in the alternative, issue an order clarifying that the lower court shall not proceed with enforcement of these orders pending this Court's review.
- Petitioner also requests expedited consideration of this motion in light of the imminent mediation date.

5. Certificate of Emergency

Petitioner certifies that this motion is filed as an emergency because enforcement of the mediation order is imminent (May 21), and trial-level obligations will irreparably burden Petitioner's legal and physical capacity during an ongoing appeal which directly concerns the propriety of those very proceedings.

Respectfully submitted this 16th day of May, 2025

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CERTIFICATE OF SERVICE

I hereby certify that, on this 16th day of May, 2025, a copy of this Motion has been furnished to Braden K. Ball, Jr., attorney for the Respondents, through the Florida Courts E-Filing Portal.

